

Ministry of Foreign Affairs and Emigrants

Directorate of International Organizations, Conferences and Cultural Relations – Culture Department

Subject: Reminder of the need for a report on the 10th consultation on the implementation of the Convention and Recommendation against Discrimination in Education 1960 within the additional extended deadline

Reference: Your letter No. 11/270 of 10/11/2020

Appended:

- Decision No. 401/m/2020 of 7/9/2020 approving the enrolment of students with a Lebanese mother married to a foreigner.
- Decision No. 415/m/2020 of 16/9/2020 approving the enrolment of non-Lebanese students in government schools and secondary schools for the academic year 2020/2021 and extending the deadline for enrolment of Lebanese students in afternoon classes.

Referring to the above subject and reference,

And in reply to your aforementioned letter referring to the letter of the permanent delegation of Lebanon to UNESCO No. 232/2020 of 17/9/2020 concerning the additional extended deadline to 15/11/2020 for the report for the 10th consultation on implementation of the 1960 Convention and Recommendation against Discrimination in Education 1960.

The Ministry of Education and Higher Education is among the ministries active and effective in strengthening the right to education, especially as regards combating discrimination in education, and has done the following:

I. Commitment under the Lebanese Constitution and legislation, which enshrine the right to education

1. The Lebanese Constitution: Article 10 of the Lebanese Constitution, promulgated on 23 May 1926 provides: "Education is free, provided it does not disturb public order or violate morals and does not compromise the dignity of any religion or creed. The rights of communities to establish their own private schools may not be violated, provided that they comply with the general requirements laid down by the State with respect to public education".

2. Lebanon has adopted a number of Acts organizing citizens' right to education

- (a) Legislative Decree No. 134 of 12/6/1959, which introduced "free education".
- (b) Act No. 686 of 16/3/1998 established the principle of compulsory, free primary education, although the implementing decree of that Act has not yet been issued.
- (c) In addition, the right to education of all persons with disabilities was established under article 24 of the Persons with Disabilities Act No. 220 of 2000.
- (d) The Advancement of Education in Lebanon Plan of 1994.
- (e) The new structure of education authorized under Cabinet Decision No. 22 of 25/10/1995.
- (f) The new curriculum issued under Decree No. 10227 of 8/5/1997.

3. Act No. 150 of 17/8/2011, which amended article 49 of Legislative Decree No. 134 of 12/1/1959. The new Act stipulated that:

“Compulsory education at the basic education stage shall be free in government schools. It shall be the right of all Lebanese who are of the age of this stage.

“A Cabinet Decree shall set out the conditions and organization of such free compulsory education.”

4. Integration of the principles of the rights of the child in the education curriculum

5. Decision No. 1130/m/2001 of 10/9/2001 on the internal organization of children's schools and basic education in government schools, article 41 of which provided that “Employees in the education sector shall not impose any form of corporal punishment on students or address verbal retribution to them that is humiliating and against the principle of education and personal dignity ...”.

II. Policies

1. The Advancement of Education in Lebanon Plan of 1994.
2. The new structure of education authorized under Cabinet Decision No. 22 of 25/10/1995.
3. Strategic Guidelines for Education in Lebanon until 2015. Ministry of Education and Higher Education, Beirut, 3/10/2000.
4. Proposed Bill aimed at establishing the right to basic education and making such education compulsory. The 18-article Bill was debated in Parliament. Education debate 2002
5. National Education for All Work Plan 2005-2015. Ministry of Education and Higher Education, Beirut, 2005.
6. National Education Strategy in Lebanon, Ministry of Education and Higher Education, planning of the Lebanese Association for Educational Studies, final version, Beirut, 20/12/2006.
7. Proposed enabling goals for the education sector in the framework of the financial, economic and social reform agenda and proposed measures for achieving these goals. Proposals presented in the framework of the Paris III Conference, held in January 2007.
8. Development of a policy on pupil protection in the school environment in harmony with the National Strategy for the protection of children from different forms of violence, mistreatment and exploitation, decided by the Cabinet in 2012.
9. The vision of the National Education Strategy.

III. Advancement of Education in Lebanon Plan

The Advancement of Education in Lebanon Plan, which was adopted by the Cabinet in Decision No. 15/94 of 17/8/1994, aimed to educate the younger generation in the necessary knowledge, expertise and skills, and to strengthen national education and deep-rooted Lebanese values such as freedom, democracy, tolerance and rejection of violence, and also to strengthen youth, sporting and artistic activities. This plan also contributed to the rehabilitation of the education system. It was an important step towards starting to reform it, including through the new education curricula issued in 1997 and their adoption after the curricula had remained unchanged since 1968.

The new educational structure adopted under Cabinet Decision No. 22 of 25/10/1995 incorporated in the new education curricula a set of intellectual, humanitarian, national, and social dimensions; the last of these covered “ongoing development of educational curricula corresponding to the abilities and talents of citizens on the one hand, and with the needs of society and the labour market on the other ...”.

IV. Gender perspective

1. One of the tasks of the Gender Perspective Committee chaired by the Director-General of Education is to integrate the gender perspective in public policy for the Ministry of Education and Higher Education, and to organize training courses and discussion seminars in the Ministry for officers, students, administrative and teaching staff, and parents committees on the concept of the gender perspective, what it is and the mechanism for integrating it in the Ministry plan, and also on the International Declaration of Human Rights, child rights law and the Convention on the Elimination of all Forms of Discrimination Against Women (CEDAW), free, compulsory education and the mechanisms for implementing it, and other matters.
2. In addition to its educational efforts focusing on research and development, the Ministry of Education and Higher Education is preparing studies that adopt the gender perspective to analyse education curricula.
3. Some teachers have been trained in cooperation with the directorates of the Ministry of Education and Higher Education, and in particular with guidance and orientation, through activities and the texts and pictures in school textbooks.

V. Sustainable Development Goal 4 of the 2030 Agenda for Sustainable Development

1. The Ministry of Education and Higher Education is working to strengthen the Education 2030 Strategy.
2. A committee chaired by the Minister of Education and Higher Education is promoting the 2030 Agenda for Sustainable Development, and especially Sustainable Development Goal 4: “Ensure inclusive and equitable quality education and promote lifelong learning opportunities for all”. Ministry of Education and Higher Education Steering Committee.
3. The Ministry of Education and Higher Education guarantees education for all students, including persons with disabilities, without any official evaluation measures.
4. Schools have been adapted and teachers of all levels have been trained to support pupils with disabilities in terms of education.
5. The General Education Directorate has prepared a draft implementing decree for the Compulsory Education Act No. 150 of 17/8/2011, stipulating that disability does not in and of itself constitute a sufficient impediment to exclude a pupil from school, and that all the circumstances set out in article 60 of Act No. 220/2000 shall be taken into account before deciding to review how a child with a disability is to be educated.
6. In addition, the special schools that ensure an appropriate education for children with special needs, such as teaching sign language or Braille and so forth, are an inseparable part of the basic compulsory education system that reaches a large number of children with disabilities who are unable to follow the programmes in ordinary schools. They enjoy the support of the Ministry of Education and Higher Education, just as government schools do, but are supervised by a joint committee, in tandem with the Ministry of Social Affairs, that brings together representatives of those educational establishments and determines the working conditions and the costs of the education in them.

VI. Enrolment of students with a Lebanese mother married to a foreigner

We have already explained that Lebanon's duty to achieve the Sustainable Development Goals (2015-2030) required the Ministry of Education and Higher Education to strengthen the right to education for all. Furthermore, the vision of the National Education Strategy assigns to the Ministry of Education and Higher Education the task of enrolling students with a Lebanese mother married to a foreigner, giving them the necessary attention, **treating them like all students** and not dismissing them during study and giving school places to all who are interested according to the rules. We recall, for example, Decision No. 415/m/2020 of 16/9/2020 approving the enrolment of non-Lebanese students in government schools and secondary schools for the academic year 2020/2021 and extending the deadline for enrolment of Lebanese students in afternoon classes (appended to this report).

The Ministry of Education and Higher Education is working to strengthen the right to education for all through:

- (a) The Ministry is promoting the Education 2030 Strategy.
- (b) A committee chaired by the Minister of Education and Higher Education is promoting the 2030 Agenda for Sustainable Development, and especially Sustainable Development Goal 4: "Ensure inclusive and equitable quality education and promote lifelong learning opportunities for all". Ministry of Education and Higher Education Steering Committee.
- (c) The Ministry of Education and Higher Education ensures education for all students, including non-Lebanese who are the children or husbands of Lebanese women.
- (d) The Ministry of Education and Higher Education does not demand any payment from non-Lebanese students who are the children or husbands of Lebanese women at either primary or secondary school.
- (e) The Ministry of Education and Higher Education works constantly to promote Goal 4 of the 2030 Agenda for Sustainable Development. In this connection, we point to the decision issued by the Minister of Education and Higher Education No. 401/m/2020 of 7/9/2020 approving the enrolment of students with a Lebanese mother married to a foreigner (appended to this report) under which all those responsible for government and private primary and secondary schools and institutes are requested to give the necessary attention to enrolling students whose mother is a Lebanese woman married to a foreigner, **to treat them as Lebanese students** and provide them with school places.

With regard to afternoon school / the second session, the same education is provided as in morning school / the first session. The successful children enrolled between year one and year nine obtain the official certificate recognized by the Ministry of Education and Higher Education, while the pupils in the years nine and twelve may sit the official examinations.

With regard to the various educational programmes in Lebanon facilitating the entry of non-Lebanese students in official/public schools, the most important are:

- (a) **Accelerated learning programme.** A separate, informal programme that qualifies non-Lebanese pupils for enrolment in government schools. It was developed to provide teaching to children aged between seven and 17 years who have been out of school for more than two years to prepare the way for their integration into formal Lebanese education.

The list of schools offering this programme is available from UNICEF, the United Nations High Commission for Refugees, social development centres and on the Internet at WWW.refugees-lebanon.org and the website of the Ministry of Education and Higher Education WWW.MEHE.gov.lb

At the end of the programme, the children are able to be integrated in government education in Lebanon. At the start and at the end of the programme, the children are

assessed as to whether they are ready to reintegrate the government education system the following year.

- (b) **Other education programmes, known as “informal education programmes”, are also provided** on the basis of the needs of the children concerned. The programmes are offered by non-governmental organizations (NGOs) and do not bestow a recognized certificate. With the support of the United Nations, the Ministry of Education and Higher Education draws up a working framework for informal education enabling NGOs to implement informal education programmes it has approved and recognized.
- (c) **Support with homework assignments** is provided to some students enrolled in formal education in government schools who attend regularly but are at risk of dropping out. This support is provided at specified times and in different frameworks. The students study their textbooks and receive support that allows them to succeed in the school year. These programmes have sometimes been held in centres coming under the Ministry of Education and Higher Education for students enrolled in government schools who need this type of support.

If Lebanese or non-Lebanese children have educational difficulties, they can enrol in government schools, including if they have special needs. Contact is made through Ministry of Education and Higher Education hotlines so that they are transferred to specialized programmes.

It should be noted that **UNRWA provides educational services (from year one to year 12) to Palestinian refugees living in Lebanon**, including Palestinian refugees arriving from Syria. UNRWA provides free education, in addition to books and a “return to school” mechanism. It presents students in schools supported by UNRWA in Lebanon for the same government examinations as Lebanese pupils, so refugees and migrants in Lebanon who have completed the twelfth year in their schools or in the country of origin are able to enrol at government or affiliated private universities in Lebanon.

VII. Effectiveness of the right to education of persons with disabilities and implementation of the National Plan for the Integration of Persons with Special Needs

The Ministry of Education and Higher Education recognizes that disability is still a developing concept. It is the result of the interaction between persons with a disability and barriers in situations and surrounding environments that prevent their full and active participation in society to the same extent as others. It also recognizes the importance of the global character of all the human rights and fundamental freedoms provided for in the International Declaration of Human Rights and international conventions on human rights, and the need to ensure that persons with disabilities enjoy these rights fully and without discrimination, considering integration of the issues of persons with disabilities to be an inseparable part of the sustainable development strategy.

In this context, it should be noted that making effective the right to education of persons with disabilities requires the strengthening of the education system in its entirety at every level. The educational path of these persons needs a great deal of time if it is to result in effectively achieving the right to obtain an education for all Lebanese children without distinction.

To achieve the desired goal of this system, we wish to review examples of the measures taken by the Ministry of Education and Higher Education in this regard.

- (a) Since the adoption of Act No. 220/2000 on the rights of persons with disabilities, the Lebanese Government, through the Ministry of Social Affairs, has allocated credits for the benefit of persons with special needs and their education in specialized establishments once their conditions have been identified in centres for persons with disabilities and a programme ensuring the rights of persons with disabilities that comes under the Ministry of Social Affairs, where there are doctors, and a group of specialists, including educational assessors, speech therapists and sensorimotor therapists. The Ministry of Education and Higher Education is responsible for ensuring education to all students without an official evaluation, drawing up individual plans and supervising their implementation, preventing overlap with the Ministry of Social Affairs.

Taking as the starting-point the right of persons with special needs to education, this requires the education system in its entirety to be strengthened at every level and it will take a long time for them to be able to obtain education without discrimination. The General Directorate of Compulsory Education of the Ministry of Education and Higher Education is taking steps to respond to the requirements at different levels, above all the work of the committee to determine the conditions of those with special educational needs concerning official examinations for the intermediate certificate, on the one hand, and, on the other, studying cases of special educational needs and pathological conditions. This committee recommends what is commensurate with each pathological condition before it in relation to the examination for the intermediate certificate, after studying the case file and meeting each student. It then issues a decision of exemption from the intermediate certificate in the cases that so require before the beginning of the ordinary course for the official examinations and continues its work until the end of the exceptional course of each year of study. In any case, as the official examinations are the fundamental expression of the national assessment operation of students, including those with educational difficulties and special needs, rooms in centres are allocated for examinations so that they are nearby and facilitate student access to examination centres.

Note: The Ministry of Education and Higher Education does not impose any additional expense or fees on students with special educational needs or difficulties, however severe.

- (b) Regarding the issue of the enrolment of students with special needs and educational difficulties, the Ministry of Education and Higher Education has not yet issued any memorandum, decision or official document refusing to accept any student wishing to enrol in a school. The General Education Directorate has prepared a draft implementing decree for the Compulsory Education Act No. 150 of 17/8/2011, stipulating that disability does not in and of itself constitute a sufficient impediment to exclude a pupil from school, and that all the circumstances set out in article 60 of Act No. 220/2000 shall be taken into account before deciding to review how a child with a disability is to be educated. In addition, the special schools that ensure an appropriate education for children with special needs, such as teaching sign language or Braille and so forth, are an inseparable part of the basic compulsory education system that reaches a large number of children with disabilities who are unable to follow the programmes in ordinary schools. They enjoy the support of the Ministry of Education and Higher Education just as government schools do but are supervised by a joint committee, in tandem with the

Ministry of Social Affairs, that brings together representatives of those educational establishments and determines the working conditions and the costs of the education in them. Indeed, the committee responsible for the education of persons with disabilities formed as a result of Act No. 220/2000 follows its meetings through the chairmanship of the Director-General of Education and is preparing a study of the state of the two fields on behalf of the Ministry of Education and Higher Education in cooperation with the Centre for Educational Research and Development, statistics on the schools eligible to receive the disabled and statistics on the schools currently able to do so if adapted, by district.

- (c) Within the strategy of a programme to provide education to all children in Lebanon coming under the Ministry of Education and Higher Education, which aims to serve the interests of all children – Lebanese and non-Lebanese – in government schools, and on the basis of the recommendations of the Human Rights Council on implementation of the policy to integrate children with disabilities in the public education system and prepare buildings to accommodate their needs, and in view of the role of the programmes and projects department of the General Directorate of Education in supporting this strategy within the framework of administering new employment contracts and making schools and infrastructure accessible, it has:

- implemented a project to commission 30 schools (as a pilot) in accordance with the required standards for the project to integrate children with special needs.
- commissioned 170 schools enjoying the same standards, and made kindergartens accessible.

Therefore,

based on the foregoing, realizing the importance of the launch of the 10th consultation on the implementation of the Convention and Recommendation against Discrimination in Education 1960, we submit to you the main contributions of the Ministry of Education and Higher Education in this matter.

Minister of Education and Higher Education